

24STCV17719 24STCV17719

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-31

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Case Number: 24STCV17719 Hearing Date: August 31, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:03 PM on August 28, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling

of the court if the court has not directed oral argument by its tentative

ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant

to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 28, 2026, the moving and opposing parties must provide

notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends

to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to

Department 734 may delay the Court's receipt of notice, so telephonic notice to

213-830-0776 should be reserved for situations where parties are unable to give

notice by email.

Plaintiffs were passengers on a privately rented tour bus which was struck at an intersection, causing Plaintiffs' injuries.

Defendant/Cross-Complainant Hollywood Bus Tours, LLC filed a Cross-Complaint against the parties allegedly responsible for the vehicle that ran the red light at the intersection.

Defendants Sunrun Inc., Kingbee Rental, LLC, and Andy Rodolfo Servellon move to bifurcate trial such that separate juries make determinations regarding liability and damages

TENTATIVE RULING

Defendants Sunrun Inc., Kingbee Rental, LLC, and Andy Rodolfo Servellon's motion to bifurcate trial such that separate juries make determinations regarding liability and damages is DENIED.

ANALYSIS

Defendants; Evidentiary Objections

Declaration of Laura Morris

No. 1: OVERRULED. Relevant; permissible legal argument of counsel.

No. 2: OVERRULED. This statement is being used to explain why bifurcation is not necessary, not to prove Plaintiffs' case.

No. 3: OVERRULED. This statement is being used to explain why bifurcation is not necessary, not to prove Plaintiffs' case.

No. 4: OVERRULED. This statement is being used to explain why bifurcation is not necessary, not to prove Plaintiffs' case.

No. 5: OVERRULED. This statement is being used to explain why bifurcation is not necessary, not to prove Plaintiffs' case.

No. 6: OVERRULED. This statement is being used to explain why bifurcation is not necessary, not to prove Plaintiffs' case.

No. 7: OVERRULED. This statement is being used to explain why bifurcation is not necessary, not to prove Plaintiffs' case.

Discussion

Defendants Sunrun Inc., Kingbee Rental, LLC, and Andy Rodolfo Servellon move to bifurcate trial such that separate juries make determinations regarding liability and damages.

Civ. Proc. Code, § 598 provides:

The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5. The court, on its own motion, may make such an order at any time. . . .

(Civ. Proc. Code, § 598.)

Civ. Proc. Code, § 1048 provides:

(a) When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

(b) The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.

(Civ. Proc. Code, § 1048.)

The trial court had ample authority to make this discretionary decision. Aside from the language in Code of Civil Procedure section 598, which concerns pretrial motions, Evidence Code section 320 provides that “[e]xcept as otherwise provided by law, the court in its discretion shall regulate the order of proof.” Similarly, Code of Civil Procedure section 1048, subdivision (b) states that a trial court, “in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action . . . or of any separate issue or of any number of causes of action or issues” Under these provisions, trial courts have broad discretion to determine the order of proof in the interests of judicial economy. (*Buran Equipment Co. v. H & C Investment Co.* (1983) 142 Cal. App. 3d 338, 343-344 [190 Cal. Rptr. 878].)

(*Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 496, 503.)

Here, moving Defendants have not demonstrated that bifurcation would promote the convenience of witnesses, the ends of justice or the economy and efficiency of handling the litigation (Civ. Proc. Code, § 598), nor that separate trials will avoid prejudice or be conducive to expedition and economy. (Civ. Proc. Code, § 1048.)

The use of separate juries would double the burden on the public by requiring the assembly of two separate venires, and would unreasonably increase the total time for trial to verdict, causing additional utilization of Department 734, which currently has more than 560 cases set for trial in the next 18 months. The alternative proposal of bifurcation of liability and damages before a single jury would not be viable, as the nature and extent of Plaintiff’s injuries is probative of the manner in

which Plaintiffs' injuries occurred, which in turn is probative of whether the seatbelts were working. The Court sees no benefit to bifurcating the issue of liability and damages. Nor does the Court find a probability that the jury would be unfairly prejudiced by hearing such evidence together.

The motion to bifurcate is DENIED.